

Helping New Zealanders Build & Modify Safe Vehicles

LVV Operating Requirements Schedule

Chapter 5 LVV Certifier Application & Appointment

Version 13 | Effective from 1 March 2026



Approval Record

Signed in accordance with clause 1.3(5) of the Low Volume Vehicle Code of LVVTA, on by:			
New Zealand Transport Agency		Low Volume Vehicle Technical Association	
Name	Signature	Name	Signature
	-----		-----

Amendment Record

Amendments details	Version #	Issue date	Effect date
• LVV ORS – Original Issue	Version 1	2001	2001
• LVV ORS – Amendment # 1	Version 2	1 August 2003	1 October 2003
• LVV ORS – Amendment # 2	Version 3	1 March 2005	1 April 2005
• LVV ORS – Amendment # 3	Version 4	1 February 2006	1 April 2006
• LVV ORS – Amendment # 4	Version 5	1 May 2007	1 July 2007
• LVV ORS – Amendment # 5	Version 6	1 March 2008	1 April 2008
• LVV ORS – Amendment # 6	Version 7	1 January 2010	1 February 2010
• LVV ORS – Amendment # 7	Version 8	1 March 2011	1 April 2011
• LVV ORS – Amendment # 8	Version 9	1 July 2016	1 July 2016
• LVV ORS – Amendment # 9	Version 10	1 October 2016	1 October 2016
• LVV ORS – Amendment # 10	Version 11	1 June 2017	1 June 2017
• LVV ORS Chapter 5 - Amendment # 11	Version 12	1 October 2024	1 October 2024
• LVV ORS Chapter 5 - Amendment # 12	Version 13	1 February 2026	1 March 2026
Note 1 The first ten amendment processes to the LVV ORS (Amendment #s 1-10), carried out between August 2003 and June 2017, were made to the complete ORS document. From Amendment # 11 (which is Version 12, issued 1 October 2024), amendments are carried out to individual chapters. Note 2 Text highlighted in grey shows amendments that have been made subsequent to the previous version of this chapter, and a grey vertical stroke to the left of the text denotes important new or changed information (which may include information which has been removed).			

About the LVV Operating Requirements Schedule

The LVV Operating Requirements Schedule (LVV ORS), and its sub-set of LVV ORS chapters (the chapters) set out the operational systems and processes which enables the LVV certification system to function effectively. Whereas the *Low Volume Vehicle Code* provides the legal platform upon which the LVV certification system operates, the LVV ORS provides robust operational systems and processes to ensure that LVV certification outcomes are consistent, fair, transparent, and of a high quality.

Author, Publisher, & Owner

This chapter is authored, published, and owned by the Low Volume Vehicle Technical Association Incorporated (LVVTA). LVVTA is an incorporated society established in 1992, that represents a group of specialist automotive organisations (in turn representing approximately 150,000 members) who are dedicated to ensuring that vehicles, when scratch-built or modified, meet the highest practicable safety standards.

The information in this chapter has stemmed from work undertaken by LVVTA founding member organisations that commenced in 1989 and has been progressively developed as an integral part of the New Zealand Government's land transport regulatory system, by agreement and in consultation with the New Zealand Transport Agency (NZTA).

As a result, the considerable experience in specialist certification management built up by LVVTA and the specialist automotive member groups over the past several decades can be of benefit to members of the New Zealand public who also wish to build or modify motor vehicles.

LVVTA's contact details are:

- Phone: +(00) 64 4 238 4343
- Email: info@lvvta.org.nz
- Postal address: P. O. Box 50-600, Porirua 5240, Wellington, New Zealand
- Website: www.lvvta.org.nz

Availability & Current Version

This chapter is printed and distributed by LVVTA, and is available to the public free of charge from the LVVTA website; www.lvvta.org.nz

Note that printed copies of this chapter, like any other printed LVVTA documents, may have been superseded by a later version and become out of date.

Therefore, this and all other LVVTA documents should not be relied upon without first ensuring that the version number (on the right-hand side of the header above) is the current version – please visit the LVV ORS area of www.lvvta.org.nz to check that this chapter is in fact the latest version.

User's Feedback

This chapter is constantly undergoing an evolutionary development process in order to keep pace with changing trends and technology. To assist in this, LVVTA invites users of the chapter to engage in an ongoing consultation process with us by making submissions for any changes, additions, or clarifications which might improve the chapter, at any time.

Any submissions made via this rolling consultation process will be thoroughly considered, and incorporated, where appropriate, at the next available amendment opportunity.

Submissions should be made to submission@lvvta.org.nz with the name of this chapter in the Subject line.

Legal Status & Copyright

This chapter is incorporated by reference, as an integral part of the *Low Volume Vehicle Code*, within *Land Transport Rule: Vehicle Standards Compliance 2002*.

The content of this chapter remains the property of LVVTA, and no part may be reproduced without LVVTA's written consent.

Disclaimer

LVVTA has made all reasonable efforts to provide sound and correct advice, based on the historical knowledge and best practice experiences of all parties involved in the development and production of this chapter.

However, no responsibility or liability is accepted by LVVTA for any error or omission, or any loss suffered by any person relying directly or indirectly on this chapter. Any person who builds or modifies a motor vehicle accepts that there may be some associated risks, and does so in the full knowledge of this, and accepts full responsibility for their own actions.

Contents

Subject	Page #
Purpose of this Chapter	6
Section 1 – Participants in the Process	6
1.1 Introduction	6
1.2 About LVV Certifiers	6
1.3 About the New Zealand Transport Agency	6
1.4 About LVVTA	7
Section 2 – Steps in the Application and Appointment Process	7
2.1 Introduction	7
2.2 How the application process works	7

2.3	Remaining steps after making an application	8
2.4	Timeframe for application and appointment process	8
Section 3 – Criteria the Applicant Must Meet		9
3.1	Introduction	9
3.2	LVV certification categories and background criteria	9
3.3	Personal and business attributes criteria	9
3.4	Other criteria	9
3.5	Geographical coverage	10
Section 4 – Registration of Interest		10
4.1	Introduction	10
4.2	Submitting an LVV Certifier Registration of Interest Form	11
4.3	Processing the LVV Certifier Registration of Interest Form	11
4.4	Invitation to Preliminary Conversation with LVVTA	11
Section 5 – Preliminary Conversation with LVVTA		11
5.1	Introduction	11
5.2	Appropriate background	12
5.3	Time and costs involved	12
5.4	Likely volume of work	12
5.5	Other advice	13
5.6	Outcome of Preliminary Conversation with LVVTA	13
Section 6 – Pre-assessment		13
6.1	Introduction	13
6.2	Objectives of Pre-assessment	13
6.3	Outcome of Pre-assessment	14
Section 7 – LVV System Familiarisation		14
7.1	Introduction	14
7.2	Objectives of LVV System Familiarisation	15
7.3	Outcome of LVV System Familiarisation	15
Section 8 – Making an Application		16
8.1	Introduction	16
8.2	Submitting an application	16
8.3	Conditions of submitting an application	16
8.4	Incomplete applications	17
8.5	Application fee	17
Section 9 – Processing the Application		17
9.1	Introduction	17
9.2	Presentation of the application	17
9.3	Legislative criteria	18

9.4	Background check	18
9.5	Geographical coverage consideration	18
9.6	Approval for Formal Assessment	18
Section 10 – Formal Assessment		18
10.1	Introduction	18
10.2	About the Formal Assessment	19
10.3	How the Formal Assessment works	19
10.4	Outcome of the Formal Assessment	19
Section 11 – Induction Training		20
11.1	Introduction	20
11.2	About Induction Training	20
11.3	Objectives of Induction Training	21
11.4	Outcome of Induction Training	21
Section 12 – Pre-appointment Mentoring		21
12.1	Introduction	21
12.2	About Pre-appointment Mentoring	21
12.3	Objectives of Pre-appointment Mentoring	22
12.4	Outcome of Pre-appointment Mentoring	22
Section 13 – If the Application is Approved		23
13.1	Notification to the Applicant	23
13.2	Notification to LVVTA	23
13.3	File Review probationary period	24
13.4	Other appointment considerations	24
Section 14 – If the Application is Declined		25
14.1	Notification to the Applicant	25
14.2	Re-application	25
Section 15 – Additional Categories for Existing LVV Certifiers		25
15.1	Introduction	25
15.2	Appointment criteria for additional LVV certification categories	26
15.3	Defining a consistently excellent standard	26
15.4	Application process	26
15.5	Assessment process	27
15.6	Appointment	27
Terms & Definitions for Chapter 5		28
Appendix 1 – Legal Background to Geographical Coverage		32
Appendix 2 – Sample LVV Certifier Notice of Appointment		35

Chapter 5

LVV Certifier Application & Appointment

Purpose of this Chapter

The purpose of this LVV Operating Requirements Schedule chapter (this chapter) is to help someone who is interested in becoming an LVV Certifier to understand the requirements, the application process, and the overall process of becoming appointed as an LVV Certifier by the New Zealand Transport Agency (NZTA).

This chapter will help a potential applicant (the 'Applicant') to understand:

- how the Applicant's suitability is established; and
- what's involved in going through the application process; and
- what's involved in the assessment and training steps leading to appointment.

This chapter should be read in conjunction with *LVV ORS Chapter 3: LVV Certification Categories* (which provides information about the types of vehicles and modifications which can be LVV certified under each different LVV certification category), and *LVV ORS Chapter 4: LVV Certifier Background Criteria* (which provides details of the knowledge and practical experience required in order to be appointed for each of the LVV certification categories).

Italics are used throughout this chapter when referencing 'external documents' that are not part of this chapter.

Section 1 Participants in the Process

1.1 Introduction

There are three primary participants in the LVV certification application and appointment process; the Applicant wishing to become an LVV Certifier, NZTA, and LVVTA. The responsibilities of the three participants are set out in section 1.

1.2 About LVV Certifiers

LVV Certifiers are appointed to carry out specialist inspection and certification of light vehicles when they are modified or scratch-built.

The primary duty of an LVV Certifier is to ensure that when a vehicle is modified or scratch-built, it is safe and complies with the applicable legal requirements specified in the *Low Volume Vehicle Code (LVV Code)*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

LVV Certifiers perform a safety-critical role within an important part of New Zealand's land transport regulatory system. This area of work requires an exceptionally high level of specialised motor vehicle expertise and carries significant responsibility.

For this reason, the application and appointment process is very robust, to ensure that only suitable applicants become appointed as LVV Certifiers.

1.3 About the New Zealand Transport Agency

The New Zealand Transport Agency (NZTA) is responsible for New Zealand's land transport regulatory system, and manages the entry of LVV Certifiers into the certification system. NZTA monitors the performance of LVV Certifiers to ensure that they comply with the requirements of the *LVV Code*, and do not place the public at risk.

If this occurs, NZTA will apply the necessary processes to improve the LVV Certifier's performance, or if this cannot be achieved, remove the LVV Certifier from the LVV certification system.

NZTA works with the Low Volume Vehicle Technical Association (LVVTA) to manage LVV certification system operations, however NZTA is responsible for the appointment, disciplinary action, and revocation of LVV Certifiers, and maintains an overall regulatory responsibility.

1.4 About LVVTA

LVVTA is an incorporated society which is independent of NZTA, that develops, maintains, and manages the LVV certification system, ensuring the system is fit for purpose and meets the needs of the system users by supporting the LVV Certifiers with technical and operational documents, systems, training, support, and guidance.

LVVTA assists NZTA by supporting applicants through the application and appointment process, and helps NZTA to determine their suitability to become LVV Certifiers.

LVVTA and the LVV Code are incorporated by reference within *Land Transport Rule: Vehicle Standards Compliance 2002*, and the individual *land transport equipment rules*.

Further information about LVVTA and the LVV certification system can be found in *LVV ORS Chapter 1: Background to the LVV Certification System*.

Section 2 Steps in the Application and Appointment Process

2.1 Introduction

There are many elements in the process of becoming an LVV Certifier. The full process is explained in this chapter (and summarised in 2.2 and 2.3 below) and is intended to enable a person interested in becoming an LVV Certifier gain a full understanding of those elements, and how a person works their way through the process from expressing an interest at the beginning, to becoming appointed as an LVV Certifier. Within the process, opportunities are provided for NZTA and LVVTA to determine the Applicant's suitability to the role.

2.2 How the application process works

2.2(1) A simplistic overview of the basic steps that a person applying to become an LVV Certifier (the 'Applicant') must follow, is:

- (a) the Applicant must read and understand this chapter, together with *LVV ORS Chapter 3: LVV Certification Categories*, and *LVV ORS Chapter 4: LVV Certifier Background Criteria*; and
- (b) the Applicant must carefully consider whether the required criteria necessary to become an LVV Certifier are met (see section 3); and
- (c) if the Applicant believes the required criteria to become an LVV Certifier is met, the Applicant may fill out and submit an *LVV Certifier Registration of Interest Form* (the '*Registration of Interest Form*'), which is available to the public electronically, free of charge, from the LVVTA website www.lvvtta.org.nz (see section 4); and
- (d) if, after receiving the *Registration of Interest Form* and being invited by LVVTA, the Applicant will participate in a Preliminary Conversation with LVVTA (see section 5), to commence the process of:

- (i) determining whether an LVV Certifier, or another LVV Certifier, is required within the Applicant's geographical area (see Note 1 below); and
- (ii) enabling LVVTA to make a preliminary determination as to whether the Applicant is likely to meet the required criteria (see section 3); and
- (iii) enabling the Applicant to gain a full understanding of what is involved in becoming, and continuing to be, an LVV Certifier;

and

- (e) if, after the Preliminary Conversation with LVVTA (see section 5) LVVTA determines that the Applicant may meet the required criteria (see section 3), and the Applicant wishes to continue with the application, the Applicant must arrange with LVVTA to undergo:
 - (i) the LVV Certifier Pre-assessment (see section 6); and
 - (ii) the LVV System Familiarisation (see section 7);

and

- (f) if, after the Applicant has successfully completed the LVV Certifier Pre-assessment (see section 6) and the LVV System Familiarisation (see section 7), and the Applicant wishes to make an application to become an LVV Certifier:
 - (i) the Applicant may do so by filling out the *LVV Certifier Application Form LV01* (the '*Application Form*') and submitting this to LVVTA (see section 8); and
 - (ii) LVVTA will forward the *Application Form* to NZTA on the Applicant's behalf, together with notification to NZTA regarding the Applicant's progress in the application process and suitability (see section 8).

Note 1 It is NZTA's responsibility to determine whether an LVV Certifier, or additional LVV Certifier, is required for the relevant geographical area from which the Applicant intends to apply, however LVVTA can provide some preliminary guidance to the Applicant as to whether geographical coverage is likely to be a factor in the application.

Further information about how NZTA will consider an application for appointment in relation to geographical coverage is detailed in 'Appendix 1 – Legal Background to Geographical Coverage' at the back of this chapter.

2.3 Remaining steps after making an application

2.3(1) After the Applicant has made an application to NZTA (see section 8):

- (a) NZTA will review the application, carry out the required background checks (see section 9), and if satisfied, will approve the Applicant to undertake the Formal Assessment (see section 10) by LVVTA; and
- (b) if the Applicant passes the Formal Assessment (see section 10) the Applicant will be invited to undergo Induction Training (see section 11) by LVVTA; and
- (c) if the Applicant satisfactorily completes the Induction Training (see section 11), the Applicant will be invited to undergo Pre-appointment Mentoring (see section 12); and
- (d) if the Applicant satisfactorily completes the Pre-appointment Mentoring (see section 12), NZTA will appoint the Applicant as an LVV Certifier (see section 13).

2.4 Timeframe for application and appointment process

2.4(1) The Applicant must allow several months for the application, assessment, and appointment process to take place, due to the many steps involved, and the number of NZTA and LVVTA staff-members who are required to be involved (see Note 1 below).

Note 1 Many steps, all of which require planning and time, are involved in the application, assessment, and appointment process. It can take up to 12 months to work through the large number of steps, and coordinate the input of the various participants involved in the process. It is up to the Applicant to ensure the process is commenced early enough to enable any personal objectives to be met.

Section 3 Criteria the Applicant Must Meet

3.1 Introduction

Section 3 outlines the type of background and attributes that a person wishing to become an LVV Certifier needs to have.

3.2 LVV certification categories and background criteria

3.2(1) There are thirteen LVV certification categories for which an LVV Certifier may be appointed, which are contained in *LVV ORS Chapter 3: LVV Certification Categories* (see Note 1 below).

Note 1 *LVV ORS Chapter 3: LVV Certification Categories* is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

3.2(2) The details of the specific knowledge and practical experience the Applicant must have for each of the thirteen LVV certification categories referred to in 3.2(1) can be found in *LVV ORS Chapter 4: LVV Certifier Background Criteria* (see Note 1 below).

Note 1 *LVV ORS Chapter 4: LVV Certifier Background Criteria*, as referred to in 3.2(2), is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

3.3 Personal and business attributes criteria

3.3(1) In addition to the knowledge and practical experience referred to in 3.2(2), the Applicant, if appointed as an LVV Certifier, will also be required to:

- (a) be committed to road safety, and be safety focused in all decisions; and
- (b) always act in an honest and ethical manner; and
- (c) provide a professional, efficient, and courteous service for users of the LVV certification system; and
- (d) have a good understanding of the English language, and speak fluent English; and
- (e) have good written and oral communication skills; and
- (f) operate in a methodical and well-organised manner; and
- (g) if the vehicle is required to be driven as part of the LVV Certifier's inspection and certification process, hold a current New Zealand Driver License for the class(es) of vehicles to be driven.

3.4 Other criteria

3.4(1) In addition to the background criteria referred to in 3.2, and the personal and business attributes criteria specified in 3.3, the Applicant must also, if appointed:

- (a) establish a quality management system, which may be the NZTA Performance Review System (PRS) (see Notes 1 and 2 below); and
- (b) obtain and maintain a comprehensive public liability and professional indemnity insurance policy for LVV certification activities (see Notes 3 to 5 below).

Note 1	The PRS is a tool used by NZTA to measure the performance of all LVV Certifiers, and is intended to: • set out what is expected of an LVV Certifier; and • explain how NZTA will assess an LVV Certifier's performance against these expectations; and • provide a level playing field by applying the same performance measurement system to all LVV Certifiers; and • be easy to understand and use; and • enable LVV Certifiers to measure their own performance in the same way as an NZTA Certification Officer will do during a PRS review, by incorporating a scoring system; and • encourage LVV Certifiers to identify problems and opportunities to improve so they can take early action using their own initiative; and • identify LVV Certifiers who perform poorly so they can be encouraged, through more frequent reviews, to improve their performance.
Note 2	The Applicant does not need to have a PRS in place at the application stage but must be prepared to discuss their understanding of the system if the application progresses to the Pre-assessment stage. If the Applicant is appointed as an LVV Certifier, training will be provided by NZTA.
Note 3	It is important to realise that 'professional indemnity' insurance referred to in 3.4(1)(b) is a different policy to the easily obtained 'public liability' insurance held by most businesses. Professional indemnity insurance is expensive, and anyone considering becoming an LVV Certifier should consider this cost (together with the other costs associated with becoming an LVV Certifier) before applying to become an LVV Certifier.
Note 4	LVVTA operates a 'group insurance scheme' for public liability and professional indemnity insurances, and can make this available to an LVV Certifier subject to certain criteria and conditions being met.
Note 5	LVVTA's 'group insurance scheme' for public liability and professional indemnity insurances is detailed in <i>LVV ORS Chapter 14: LVVTA Services & Support</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

3.5 Geographical coverage

- 3.5(1) An additional consideration of appointment as an LVV Certifier, separate to the criteria the Applicant must meet, is the criteria of whether an LVV Certifier, or another LVV Certifier, is required within the Applicant's geographical area to meet the needs of the motoring public and modification industry (see Note 1 below).

Note 1	Maintaining the right number of LVV Certifiers in relevant geographical areas is a critical element in achieving the right balance between maintaining sufficient LVV Certifiers to provide a good service to the public, and ensuring against over-subscription with an associated reduction of inspection quality. <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> specifies, during the application process, that NZTA must take into consideration the number of LVV Certifiers already appointed and available within the relevant geographical area. Further information about how NZTA will consider an application for appointment in relation to geographical coverage is detailed in 'Appendix 1 – Legal Background to Geographical Coverage' at the back of this chapter.
--------	--

Section 4 Registration of Interest

4.1 Introduction

The physical starting point for the Applicant in applying to become an LVV Certifier is to fill in an LVV Certifier Registration of Interest Form and submit it to LVVTA. This starts the process of enabling the Applicant to learn about the LVV certification system, and to establish whether the Applicant meets the criteria required to become an LVV Certifier.

Section 4 outlines this step in the application and appointment process.

4.2 Submitting an LVV Certifier Registration of Interest Form

4.2(1) If after reviewing the criteria that the Applicant must meet (see section 3), the Applicant believes that the criteria can be met, the Applicant must (see Notes 1 and 2 below):

- (a) fill out an *LVV Certifier Registration of Interest Form (Registration of Interest Form)*, which must include:
 - (i) a basic written outline of the Applicant's qualifications, knowledge, and practical experience, and any other information which has relevance to the role of an LVV Certifier; and
 - (ii) a list of referees with contact details who might attest to the Applicant's knowledge, practical experience, and character;

and

- (b) submit the *Registration of Interest Form* to LVVTA.

Note 1 The *Registration of Interest Form* is available to the public electronically, free of charge, from the LVVTA website www.lvvt.org.nz and can be submitted to LVVTA directly from the website.

Note 2 If any assistance is required in filling out or submitting the *Registration of Interest Form*, LVVTA should be contacted on (04) 238-4343.

4.3 Processing the LVV Certifier Registration of Interest Form

4.3(1) LVVTA will review the *Registration of Interest Form*, and consider the Applicant's information against the criteria the Applicant must meet (see section 3), and will contact the Applicant to either (see Note 1 below):

- (a) advise that the Applicant does not meet the required criteria (see section 3) and explain why; or
- (b) advise the Applicant that, upon an initial review, it appears the required criteria (see section 3) may be met, and the Applicant should continue with the application and appointment process.

Note 1 LVVTA will, in all cases advise NZTA (as agreed between LVVTA and NZTA) of each *Registration of Interest Form* received, and the outcome.

4.4 Invitation to Preliminary Conversation with LVVTA

4.4(1) After reviewing the Applicant's *Registration of Interest Form*, if LVVTA considers the Applicant meets the required criteria (see section 3) the Applicant will be invited to participate in a Preliminary Conversation with LVVTA (see section 5) at a time mutually agreed between the Applicant and LVVTA.

Section 5 Preliminary Conversation with LVVTA

5.1 Introduction

The Applicant is required to participate in an informal discussion with a representative of LVVTA, known as the 'Preliminary Conversation with LVVTA'.

The Preliminary Conversation with LVVTA, which may be either face-to-face, video conference, or telephone, enables the Applicant to gain a comprehensive understanding of all the relevant factors associated with becoming, and remaining, an LVV Certifier. This includes gaining knowledge of the LVV certification system, the required background, the steps in the application process, costs and timeframes, and ongoing responsibilities.

This comprehensive understanding of the LVV certification system will enable the Applicant to make a fully informed decision as to whether to commit to the application process.

5.2 Appropriate background

5.2(1) LVVTA will provide further explanation and advice (beyond that provided in section 3) in relation to:

- (a) the type of knowledge and practical experience the Applicant will need for appointment to the various LVV certification categories; and
- (b) ensuring the Applicant understands that evidence of the knowledge and practical experience must be provided as part of the application process.

5.2(2) LVVTA will ensure the Applicant understands the potential implications of any past criminal convictions the Applicant may have, as part of NZTA's 'fit and proper person' criteria.

5.3 Time and costs involved

5.3(1) LVVTA will provide explanation and advice to the Applicant about the time and costs involved in becoming appointed as an LVV Certifier, and continuing to be an LVV Certifier, which include:

- (a) the time and costs (if applicable) associated with the provision of:
 - (i) Pre-assessment; and
 - (ii) Formal Assessment; and
 - (iii) Induction Training; and
 - (iv) Pre-appointment Mentoring;
 and
- (b) the requirement for, and costs of, public liability and professional indemnity insurance; and
- (c) the time associated with:
 - (i) attending regular regional and national LVV Certifier Training; and
 - (ii) reviewing and updating LVV certification information; and
 - (iii) being a source of advice and information to the public and industry.

5.4 Likely volume of work

5.4(1) LVVTA will provide explanation and advice to the Applicant about:

- (a) the number of LVV Certifiers (if any) already appointed and available within the Applicant's geographical area; and
- (b) the need for an LVV Certifier, or another LVV Certifier, within the Applicant's geographical area (see Note 1 below); and

- (c) the likely volume of LVV certification work which may be available to the Applicant if appointed.

Note 1 Further information about how NZTA will consider an application for appointment in relation to geographical coverage is detailed in 'Appendix 1 – Legal Background to Geographical Coverage' at the back of this chapter.

5.5 Other advice

5.5(1) LVVTA will also explain to the Applicant what can be expected in relation to:

- (a) the LVV System Familiarisation process; and
- (b) the general application process to NZTA; and
- (c) the File Review System; and
- (d) obligations in relation to use of the PRS; and
- (e) LVVTA's group insurance scheme which may be available; and
- (f) ongoing technical support that LVVTA will provide; and
- (g) LVVTA's other roles and responsibilities in relation to LVV certification.

5.6 Outcome of Preliminary Conversation with LVVTA

5.6(1) If LVVTA considers, during the Preliminary Conversation with LVVTA, that the Applicant has the potential to become appointed as an LVV Certifier, the Applicant will be approved for a Pre-assessment (see section 6) with LVVTA, at a time mutually agreed between LVVTA and the Applicant, at the premises of the Applicant.

Section 6 Pre-assessment

6.1 Introduction

Section 6 explains the 'Pre-assessment', which is intended to ensure the Applicant is the right 'fit' for the role, before undergoing the Formal Assessment.

Pre-assessment provides an opportunity for LVVTA to confirm the Applicant's suitability to the role, and provides an indication of the Applicant's likelihood of passing the Formal Assessment.

Going through the Pre-assessment also prepares the Applicant for the Formal Assessment, by gaining an insight into how the Formal Assessment is presented.

6.2 Objectives of Pre-assessment

6.2(1) Pre-assessment will take place at the premises of the Applicant, at a time suitable for the Applicant and LVVTA, and is expected to take no more than half a day.

6.2(2) Pre-assessment will enable a senior technical representative of LVVTA to:

- (a) see the Applicant's premises, equipment, and general working environment (see Note 1 below); and
- (b) inspect vehicles the Applicant owns, or has modified or built, and confirm, through in-depth discussion and analysis of the Applicant's modification and construction work, that the Applicant:

- (i) possesses an industry-expert level of knowledge and practical experience, as required by *LVV ORS Chapter 4: LVV Certifier Background Criteria*, for the LVV certification categories in which the Applicant has an interest; and
- (ii) has accumulated modification and construction experience which incorporates significant complexity and wide-ranging diversity, as required by *LVV ORS Chapter 4: LVV Certifier Background Criteria*, for the LVV certification categories in which the Applicant has an interest; and
- (iii) will be committed to road safety, and will be safety-focused in all LVV certification decisions; and
- (iv) has sound decision-making capability, and has willingness to apply the relevant legal requirements;

and

- (c) conduct a Pre-assessment Technical Competence Test, which the Applicant must pass (see Note 2 below); and
- (d) confirm that the Applicant:
 - (i) meets the personal and business attributes criteria specified in 3.3; and
 - (ii) possesses the necessary character, ethics, and ability to provide good customer service; and
 - (iii) has a reasonable chance of passing the Formal Assessment (see section 10).

Note 1	The Applicant's work premises can include a home garage if it enables the assessment and discussion requirements of 6.2(2) to be met.
Note 2	The required pass-mark for the Pre-assessment Technical Competence Test referred to in 6.2(2)(c) must be no less than 80%.

6.3 Outcome of Pre-assessment

6.3(1) If the Applicant is considered to be suitable during the Pre-assessment, the Applicant will:

- (a) be approved for LVV System Familiarisation (see section 7); and
- (b) be provided with a copy of the complete *LVV Operating Requirements Schedule (LVV ORS)* to assist the Applicant gain a broader understanding of the LVV certification system (see Note 1 below).

Note 1	The LVV ORS is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
--------	--

Section 7 LVV System Familiarisation

7.1 Introduction

Section 7 explains the 'LVV System Familiarisation', which provides the Applicant with all the necessary knowledge of the LVV certification system and the LVV Certifier's role within it, to enable the Applicant to be in a position to make a fully informed decision as to whether or not to commit to the application process.

7.2 Objectives of LVV System Familiarisation

- 7.2(1) LVV System Familiarisation will take place at the premises of LVVTA, at a time suitable for the Applicant and LVVTA, and is expected to take no more than half a day.
- 7.2(2) LVV System Familiarisation will enable the Applicant to gain an in-depth understanding of all aspects of the LVV certification system, including (see Note 1 below):
- (a) how the LVV certification system, including the operational systems and processes for both the LVV Certifiers and LVVTA, work on a day-to-day basis; and
 - (b) how the File Review System, and associated Error Recording and Error Reporting Systems are applied to LVV Certifiers (see Note 2 below); and
 - (c) how the support systems and performance management processes are applied to LVV Certifiers (see Note 3 below); and
 - (d) the expectations and obligations of an LVV Certifier in relation to provision of service, and application of safety-based requirements and inspection processes; and
 - (e) how the relationship and division of responsibilities works between the LVV Certifiers, LVVTA, and NZTA.

Note 1 The process referred to in 7.2(2) is provided by LVVTA at no charge, in order to enable Applicants to be in a position to make a fully informed decision as to whether or not they wish to commit to the time and costs associated with undergoing the application process and Formal Assessment.

Note 2 The File Review System, and associated Error Recording and Error Reporting Systems, are detailed in *LVV ORS Chapter 10: LVV File Review System*, and *LVV ORS Chapter 11: LVV Certifier Error Recording & Reporting*, which are available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

Note 3 The support systems and performance management processes are detailed in *LVV ORS Chapter 13: LVV Complaints & Performance Management*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

- 7.2(3) LVV System Familiarisation may be provided at no charge to the Applicant, however all costs associated with attending LVV System Familiarisation, such as travel and accommodation, are to be met by the Applicant.

7.3 Outcome of LVV System Familiarisation

- 7.3(1) If the Applicant is considered to be suitable during LVV System Familiarisation, and the Applicant wishes to proceed with the application process, the Applicant will be:
- (a) invited to make an application (see section 8); and
 - (b) approved for Formal Assessment (see section 10), subject to NZTA's approval of the application; and
 - (c) encouraged to study the *LVV Certification Manuals* in order to maximise the likelihood of a successful outcome at the Formal Assessment (see section 10, and Notes 1 and 2 below).

Note 1 The *LVV Certification Manuals* are available at the LVVTA website www.lvvta.org.nz and LVVTA will provide the Applicant with an overview of the *LVV Certification Manuals* at the time of the LVVTA System Familiarisation.

Note 2 If the Applicant would prefer working with hard copies of the *LVV Certification Manuals* rather than accessing the documents electronically, LVVTA will loan the Applicant a set, which the Applicant will be required to return at the time of the Formal Assessment.

Section 8 Making an Application

8.1 Introduction

Section 8 explains the steps in making an application to become appointed as an LVV Certifier.

8.2 Submitting an application

8.2(1) If the Applicant wishes to proceed with making an application to become an LVV Certifier after completing the Preliminary Conversation with LVVTA (see section 5), Pre-assessment (see section 6), and LVV System Familiarisation (see section 7), the Applicant must:

- (a) fill out an 'LVV Certifier Application LVV01' (*Application Form*) (see Notes 1 and 2 below); and
- (b) provide all the required supporting information specified within the *Application Form*; and
- (c) obtain from the Ministry of Justice a 'Criminal Record Check' that is not more than 30 days old (see Notes 3 and 4 below); and
- (d) submit the *Application Form* and the *Criminal Record Check*, together with all required supporting information, to LVVTA who will formally submit the application to NZTA on the Applicant's behalf (see Note 5 below).

Note 1	An <i>Application Form</i> (to become an LVV Certifier) will be provided by LVVTA to suitable Applicants upon completion of Pre-assessment (see section 6) and LVV System Familiarisation (see section 7).
Note 2	LVVTA can provide advice and guidance to the Applicant during the process of preparing and submitting their application to become an LVV Certifier.
Note 3	A <i>Criminal Record Check</i> is available online, free of charge, from the Ministry of Justice, by applying to justice.govt.nz/criminal-records/get-your-own .
Note 4	The Applicant is not required to submit a <i>Criminal Record Check</i> if the Applicant is already an authorised vehicle inspector or specialist certifier, however NZTA reserves the right to request an up-to-date <i>Criminal Record Check</i> when adding to a current appointment.
Note 5	The <i>Application Form</i> , the <i>Criminal Record Check</i> , and the required supporting information, can be sent via email to info@lvvta.org.nz .

8.3 Conditions of submitting an application

8.3(1) When submitting an application, the Applicant must:

- (a) understand and agree:
 - (i) to always meet NZTA's and LVVTA's technical and operational requirements; and
 - (ii) that information relating to the Applicant's LVV certification activities will be shared between NZTA and LVVTA (see Note 1 below); and
 - (iii) to meet the terms and conditions of the NZTA *Notice of Appointment*, which will be issued if the application is approved by NZTA;
- and
- (b) confirm on the *Application Form* that the Applicant:

- (i) has met all of the criteria specified in section 3; and
- (ii) has engaged in and completed the Preliminary Conversation with LVVTA (see section 5), Pre-assessment (see section 6), and LVV System Familiarisation (see section 7); and
- (iii) can obtain, if appointed, the required public liability and professional indemnity insurance (see 'Other criteria' in section 3).

Note 1 Information sharing occurs because LVVTA supports NZTA in various LVV certification-related functions, which includes 'File Reviews' and dealing with complaints, all of which requires access to all LVV Certifiers' information by both parties.

8.4 Incomplete applications

- 8.4(1) An application will not be accepted unless the Applicant includes all the required supporting information specified in the *Application Form*.
- 8.4(2) If the Applicant submits an incomplete application, LVVTA will advise the Applicant what else is required before the application can proceed (see Note 1 below).

Note 1 An application will not proceed if it is incomplete, and NZTA will not keep an application 'live' indefinitely.

8.5 Application fee

- 8.5(1) As from 1 October 2023, there is no application fee payable to NZTA for applying to become an LVV Certifier (see Note 1 below).

Note 1 The current situation relating to the absence of an application fee to become an LVV Certifier may change into the future.

Section 9 Processing the Application

9.1 Introduction

Section 9 provides an overview of the steps in relation to processing an application from someone wishing to become appointed as an LVV Certifier.

9.2 Presentation of the application

- 9.2(1) Upon receiving an application for appointment as an LVV Certifier, LVVTA will:
- (a) ensure the application is correct, complete, and contains all supporting documents required by 8.2(1); and
 - (b) forward to NZTA for consideration:
 - (i) the application and supporting documents required by 8.2(1); and
 - (ii) confirmation that the required processes specified in 8.3(1)(b)(ii) have occurred; and
 - (iii) LVVTA's recommendation regarding the Applicant's suitability.

9.3 Legislative criteria

- 9.3(1) NZTA will consider the application for appointment as an LVV Certifier against the criteria specified in clauses 2.5 and 2.6 of the *Land Transport Rule: Vehicle Standards Compliance 2002* (see Note 1 below).

Note 1 The *Land Transport Compliance Rule* can be found online at <https://nzta.govt.nz/assets/resources/rules/docs/vehicle-standards-compliance-2002.pdf>

9.4 Background check

- 9.4(1) Upon receipt of the *Application Form* and supporting information, NZTA will:
- (a) confirm the Applicant has contacted LVVTA for the Preliminary Conversation with LVVTA (see section 5); and
 - (b) confirm the Applicant has undergone Pre-assessment (see section 6), and LVV System Familiarisation (see section 7); and
 - (c) carry out a background check to determine the Applicant's suitability, including:
 - (i) determining the Applicant's knowledge and practical experience are appropriate; and
 - (ii) if the Applicant holds or has held another certification authority from NZTA, performance history, including relevant warnings, penalties, and disciplinary actions imposed.

9.5 Geographical coverage consideration

- 9.5(1) NZTA will also give consideration to clause 2.5(2)(b)(v) of the *Land Transport Rule: Vehicle Standards Compliance 2002*, which requires NZTA to consider the number of LVV Certifiers already appointed and available in the Applicant's geographical area, when considering an application for appointment.

Note 1 Further information about how NZTA will consider an application for appointment in relation to geographical coverage is detailed in 'Appendix 1 – Legal Background to Geographical Coverage' at the back of this chapter.

9.6 Approval for Formal Assessment

- 9.6(1) Upon establishing that an application meets all of NZTA's criteria, NZTA will approve the Applicant to undergo a Formal Assessment (see section 10) with LVVTA.

Section 10 Formal Assessment

10.1 Introduction

Section 10 explains that the 'Formal Assessment' – as distinct from the 'Pre-assessment' (see section 6) – is the primary step in ensuring that any person wishing to become appointed as an LVV Certifier does in fact have the knowledge and practical experience necessary for the person to make a highly-competent LVV Certifier.

10.2 About the Formal Assessment

The Formal Assessment is based on a series of PowerPoint Presentation-based examinations which are completely objective and provide clearly defined pass/fail criteria. The Formal Assessment is a rigorous, scored, and documented examination process which includes the presence of a technical representative of NZTA.

10.3 How the Formal Assessment works

10.3(1) The Formal Assessment will take place at the premises of LVVTA, at a time suitable for the Applicant, NZTA, and LVVTA, and is expected to take a full day.

10.3(2) The Formal Assessment will be conducted by not less than one representative each from NZTA and LVVTA, and is comprised of:

- (a) a written multi-choice closed book test which requires 20 questions to be answered in 30 minutes, with a pass rate of not less than 15 correct answers; and
 - (b) an in-depth PowerPoint-based examination to confirm the Applicant possesses the necessary knowledge and practical experience in:
 - (i) light motor vehicle-related general automotive knowledge; and
 - (ii) light motor vehicle-related mechanical knowledge; and
 - (iii) light motor vehicle modification and construction knowledge; and
 - (iv) understanding and application of the technical and operational requirements specified in the *LVV Certification Manuals*;
- and
- (c) an in-depth evaluation of the Applicant's competence during vehicle inspections in a workshop environment, relating to one or more low volume vehicles of a type applicable to the LVV certification categories for which the Applicant is applying; and
 - (d) an evaluation of the Applicant's personality and character, in order to establish whether the Applicant is likely to work with NZTA and LVVTA in a spirit of co-operation, and in particular, has the necessary willingness to:
 - (i) work within the team environment that is required to exist between LVVTA and the LVV Certifiers, particularly in relation to the File Review System (see Note 1 below); and
 - (ii) place motor vehicle safety as the highest priority.

Note 1	The File Review System is detailed in <i>LVV ORS Chapter 10: LVV File Review System</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
---------------	--

10.3(2) The Formal Assessment may be provided at no charge to the Applicant, however all costs associated with attending the Formal Assessment, such as travel and accommodation, are to be met by the Applicant.

10.4 Outcome of the Formal Assessment

10.4(1) An Applicant who achieves the required pass rate during the Formal Assessment, and satisfies NZTA and LVVTA that there are no significant shortfalls in experience, knowledge, skills, or willingness to work co-operatively with NZTA and LVVTA, will be:

- (a) notified of the outcome at the conclusion of the Formal Assessment by either a NZTA or LVVTA representative; and
- (b) approved for Induction Training (see section 11).

10.4(2) If the Applicant does not pass the Formal Assessment, the Applicant (see Notes 1 and 2 below):

- (a) will be notified of the outcome at the conclusion of the Formal Assessment by either an NZTA or LVVTA representative; and
- (b) is unlikely to be permitted to re-sit the Formal Assessment:
 - (i) within a period of two years from the first attempt; and
 - (ii) if the Applicant fails to pass the Formal Assessment a second time.

Note 1 If the Applicant is the right 'fit' for the role, their suitability will be apparent during the first Formal Assessment. Providing ongoing opportunities to enable the Applicant to 'study up' in order to get into an environment for which they are not suited creates a high degree of safety risk and wasted resources for no benefit to any participant.

Note 2 An applicant is unlikely to be permitted to sit the Formal Assessment more than twice, and there will usually be a minimum two-year stand-down period between the first and second attempts. This is because the required knowledge and practical experience required to become an LVV Certifier are so specialised and must be amassed over such a long period, that this accumulated expertise cannot be 'learnt' by study, as might apply to, say, sitting a driver's license. A person cannot become an expert in motor vehicle modification and construction without significant practical immersion and application.

Section 11 Induction Training

11.1 Introduction

Section 11 explains 'Induction Training', which is one of the final steps involved in achieving appointment as an LVV Certifier. Even with the right background, a person becoming appointed as an LVV Certifier is nowhere near ready to be sent out into the complex and diverse world of assessing and approving high-level motor vehicle modification and construction, so training is critical to ensuring the right long-term outcomes.

Induction Training is comprised of showing the Applicant the many documentation-related aspects of the LVV certification system that need to be understood before commencing LVV certification, and shows the Applicant the basic processes associated with how to physically carry out an LVV certification inspection on a vehicle, and the general standard and quality of inspection that is expected of an LVV Certifier.

11.2 About Induction Training

11.2(1) Induction Training takes place at the premises of LVVTA, at a time suitable for the Applicant and LVVTA, to begin the process of learning about the day-to-day operations as an LVV Certifier (see Notes 1 and 2 below).

Note 1 With variances depending on the LVV certification categories the Applicant is applying for, Induction Training is between one and three days in duration.

Note 2 To assist the Applicant in minimising costs, every effort is made by LVVTA to (in cases where the Applicant passes the Formal Assessment) provide the Induction Training immediately after the Formal Assessment (in the same trip to LVVTA).

11.2(2) Induction Training may be provided at no charge to the Applicant, however all costs associated with attending Induction Training, such as travel and accommodation, are to be met by the Applicant.

11.3 Objectives of Induction Training

- 11.3(1) The objectives of Induction Training are to enable the Applicant to begin the process of becoming familiar with:
- (a) the relationship between the *LVV Standards* and *NZ Car Construction Manual Chapters*, and the *LVV Inspection Form-sets*; and
 - (b) the use of the *LVV Base Forms* and *LVV Inspection Form-sets*, and other documents used during LVV certification inspections; and
 - (c) specialised technical knowledge which needs to be applied during LVV certification inspections; and
 - (d) specialised LVV certification inspection equipment which is necessary during LVV certification inspections; and
 - (e) carrying out gas emissions testing and noise emissions testing; and
 - (f) carrying out LVV certification road testing and brake-testing procedures; and
 - (g) fitting and general use of LVV Electronic Data Plates; and
 - (h) various electronic resources available to LVV Certifiers.

11.4 Outcome of Induction Training

- 11.4(1) If the Applicant satisfies LVVTA during Induction Training that there are no significant shortfalls in understanding and correctly applying all aspects of LVV certification activities covered in the Induction Training, the Applicant will be approved for Pre-appointment Mentoring (see section 12).

Section 12 Pre-appointment Mentoring

12.1 Introduction

‘Pre-appointment Mentoring’ is a support system that has been developed to enable a person about to be appointed as an LVV Certifier to be mentored by an experienced LVV Certifier in whom LVVTA has a high degree of confidence.

This provides an environment where a newcomer can be shown the ropes by an experienced expert.

Section 12 explains Pre-appointment Mentoring, which is the last step in achieving appointment as an LVV Certifier.

12.2 About Pre-appointment Mentoring

- 12.2(1) Pre-appointment Mentoring will take place at the premises of the mentoring LVV Certifier, at a time suitable for the Applicant and the mentoring LVV Certifier, and must take place within a timeframe agreed between the Applicant and LVVTA.
- 12.2(2) Pre-appointment Mentoring:
- (a) is overseen and directed by LVVTA, including the nomination of an experienced mentoring LVV Certifier (see Notes 1 and 2 below); and

- (b) will focus on training, assisting, and observing the Applicant, who, under the guidance of the mentoring LVV Certifier, will carry out not less than ten LVV certifications appropriate to the LVV certification categories for which the Applicant wishes to be appointed (see Note 3 below).

Note 1	Pre-appointment Mentoring will, depending on the type and number of LVV certification categories being applied for, be of not less than five days duration, and will occur at a time and place determined by LVVTA.
Note 2	Pre-appointment Mentoring may, at LVVTA's discretion, be provided by one, or more than one, mentoring LVV Certifiers.
Note 3	The number of LVV certifications may, due to the complexity of some vehicles and modifications, be varied by agreement between LVVTA and the mentoring LVV Certifier.

12.3 Objectives of Pre-appointment Mentoring

12.3(1) The objectives of Pre-appointment Mentoring are to provide the Applicant with detailed practical familiarisation about all aspects of the LVV certification inspection process, with particular attention to:

- (a) LVV certification inspection techniques and procedures; and
- (b) detailed explanation and instruction on the use of *LVV Base Forms* and *LVV Inspection Form-sets*; and
- (c) dealing with, and providing good service to, members of the public and industry; and
- (d) working collaboratively and cooperatively with LVVTA; and
- (e) developing the Applicant's confidence in carrying out LVV certification inspections.

12.4 Outcome of Pre-appointment Mentoring

12.4(1) At the completion of Pre-appointment Mentoring, the mentoring LVV Certifier will confirm in writing to LVVTA that either (see Note 1 below):

- (a) the Applicant's performance during Pre-appointment Mentoring was satisfactory, and the Applicant is endorsed as having the necessary level of competence to commence LVV certifications without supervision; or
- (b) the Applicant's performance during Pre-appointment Mentoring was generally satisfactory, and the Applicant is endorsed as having the necessary level of competence to commence LVV certifications without supervision subject to first undergoing further mentoring in specified areas; or
- (c) the Applicant's performance during Pre-appointment Mentoring was not satisfactory, and the Applicant is not ready to be appointed as an LVV Certifier at that time.

Note 1	In any of the cases specified, the mentoring LVV Certifier will provide a written summary to LVVTA detailing the LVV certifications that were undertaken during the Pre-appointment Mentoring process, and how the Applicant performed during each LVV certification.
--------	---

12.4(2) The Applicant will be responsible for:

- (a) making payment directly to the mentoring LVV Certifier for the cost of the Pre-appointment Mentoring (see Notes 1 and 2 below); and
- (b) all other costs associated with attending Pre-appointment Mentoring, such as travel and accommodation (see Note 3 below).

Note 1	The cost for the mentoring LVV Certifier to provide Pre-appointment Mentoring will vary according to the time required to provide it, which in turn will depend on the categories the Applicant is being appointed for.
Note 2	The cost to the Applicant for the provision of Pre-appointment Mentoring will be determined by LVVTA, in consultation with the mentoring LVV Certifier.
Note 3	The mentoring LVV Certifier may not be in the same geographical region as the Applicant, so the Applicant must be aware that 'out of town' travel and accommodation may be required.

- 12.4(3) If LVVTA is satisfied after Pre-appointment Mentoring that there are no significant shortfalls in the Applicant's ability to commence LVV certification activities unsupervised, LVVTA will provide a written recommendation to NZTA that the Applicant is ready to be appointed as an LVV Certifier.

Section 13 If the Application is Approved

13.1 Notification to the Applicant

- 13.1(1) Upon satisfaction that all requirements of this chapter have been met, and having received a written recommendation from LVVTA in support of the Applicant, NZTA will provide the Applicant with:
- (a) notification in writing of their appointment as an LVV Certifier; and
 - (b) a *Notice of Appointment* (see Note 1 below).

Note 1	For reference, a sample <i>LVV Certifier Notice of Appointment</i> is provided in 'Appendix 2 – Sample LVV Certifier Notice of Appointment' at the back of this chapter.
--------	--

13.2 Notification to LVVTA

- 13.2(1) If NZTA issues the Applicant with a formal appointment, NZTA will:
- (a) notify LVVTA that the appointment has been made; and
 - (b) provide LVVTA with the newly appointed LVV Certifier's contact details.
- 13.2(2) Upon receipt of notification from NZTA about the appointment of a new LVV Certifier, LVVTA will:
- (a) update the national LVV Certifier database with the newly appointed LVV Certifier's relevant contact details; and
 - (b) make that information available to the public via the **LVVTA website** (see Note 1 below); and
 - (c) provide the LVV Certifier with the required LVV certification documents specified in *LVV ORS Chapter 6: LVV Documents, Equipment, & Premises* (see Note 2 below).

Note 1	In most cases, making appointment information to the public, via the LVVTA website www.lvvta.org.nz will be immediate, however in some cases this may occur later in order to enable a newly appointed LVV Certifier to have a 'soft launch' by gaining experience incrementally before becoming fully accessible to the public.
Note 2	<i>LVV ORS Chapter 6: LVV Documents, Equipment, & Premises</i> is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

13.3 File Review probationary period

- 13.3(1) A newly appointed LVV Certifier's LVV certification files will be subjected to a 100% File Review by LVVTA until LVVTA is satisfied that the LVV Certifier is performing at a consistently high standard (see Notes 1 and 2 below).

Note 1 A File Review is a desk-top auditing process, where all *LVV Base Forms*, *LVV Inspection Form-sets*, supporting information, and photographs relative to a *LVV Certification File* are reviewed by LVVTA technical staff to ensure that a newly appointed LVV Certifier is correctly applying the applicable technical requirements and operational processes, making good certification decisions, and that the vehicles being certified are safe and compliant.

Note 2 The File Review System is detailed in *LVV ORS Chapter 10: LVV File Review System*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

- 13.3(2) If the File Review System indicates that a newly appointed LVV Certifier is performing at a consistently high standard, the number of File Reviews applied to the LVV Certifier will be reduced from 100% to random and targeted File Reviews, as considered necessary by NZTA.

- 13.3(3) If the File Review process indicates that a newly appointed LVV Certifier is not performing at a consistently high standard within the number of LVV certifications which might reasonably be expected, LVVTA will, subject to requirement from NZTA:

- (a) continue applying the File Review process to 100% of the LVV Certifier's *LVV Certification Files* for an indefinite period of time until the LVV Certifier is performing at a consistently high standard (see Notes 1 and 2 below); and
- (b) charge the LVV Certifier for the time taken to carry out further File Reviews, on a fair and reasonable cost-recovery basis.

Note 1 An LVV Certifier will be kept informed by LVVTA about any LVV certification performance issues on a regular basis.

Note 2 See *LVV ORS Chapter 10: LVV File Review System* and *LVV ORS Chapter 11: LVV Error Recording & Reporting* for further information about the File Review System, both of which are available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

- 13.3(4) If a newly appointed LVV Certifier shows a continuing pattern of issuing LVV certifications for vehicles which are not safe and compliant, NZTA will take disciplinary action.

13.4 Other appointment considerations

- 13.4(1) As part of the initial and ongoing obligations and requirements associated with being appointed as an LVV Certifier, an LVV Certifier must also:

- (a) undergo ongoing LVVTA training held at various intervals and locations throughout each year, as specified in *LVV ORS Chapter 14: LVVTA Services & Support*; and
- (b) review, understand, and become familiar with the content of the *LVV Certification Manuals*, along with periodic information updates and amendments distributed by LVVTA at various intervals throughout each year; and
- (c) commit to continuous professional development (see Note 1 below).

Note 1 'Continuous professional development' in relation to LVV certification, should include the ongoing improvement of:

- understanding emerging technologies; and
- learning and growing with the LVV certification system; and
- customer service.

- 13.4(2) An LVV Certifier must comply with the interregional operation requirements specified in *LVV ORS Chapter 7: LVV Certifier Conduct & Service* (see **Notes 1 and 2** below).

Note 1 'Interregional operation' means providing LVV certification services in areas outside of the geographical region in which the LVV Certifier is appointed.

Note 2 *LVV ORS Chapter 7: LVV Certifier Conduct & Service* is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

Section 14 If the Application is Declined

14.1 Notification to the Applicant

- 14.1(1) If NZTA is not satisfied the Applicant has met all aspects of the application process specified in this chapter, the Applicant will be provided with a letter giving notice that NZTA is considering declining the application (*Notice of Consideration to Decline*), which the Applicant will be invited to respond to.
- 14.1(2) After considering the Applicant's response to the *Notice of Consideration to Decline*, if NZTA has determined the Applicant does not meet the requirements specified in this chapter, the Applicant will be issued with a letter from NZTA advising the application has been declined (*Notice of Decision to Decline*), together with the reasons why.

14.2 Re-application

- 14.2(1) If NZTA issues a *Notice of Decision to Decline* to the Applicant, and the Applicant wishes to reapply to become an LVV Certifier, the Applicant may re-apply:
- (a) in the case of the *Notice of Decision to Decline* being issued prior to the Applicant undertaking the Formal Assessment (see section 10), at any time (see **Note 2** below); or
 - (b) in the case of the *Notice of Decision to Decline* being issued after the Applicant undertakes the Formal Assessment (see section 10), not less than two years from the date the most recent *Notice of Decision to Decline* is issued (see **Notes 1 and 2** below).

Note 1 The two year 'stand-down' is because the required knowledge and practical experience required to become an LVV Certifier are so specialised and must be amassed over such a long period, that this accumulated expertise cannot be 'learnt' simply by study, as might apply to, say, sitting a driver's license.

Note 2 During consideration of a re-application, NZTA will take into account any information relating to the original application, and any new information about the Applicant that becomes available since the time of the original application, both in relation to the Applicant's knowledge and practical experience, and also the Applicant's character, conduct, or ethics.

Section 15 Additional Categories for Existing LVV Certifiers

15.1 Introduction

Once appointed, an LVV Certifier may, in time, wish to become appointed for additional LVV certification categories. The LVV certification system allows for this, and section 15 provides the details of how an LVV Certifier goes about applying to become appointed for additional LVV certification categories.

15.2 Appointment criteria for additional LVV certification categories

15.2(1) An existing LVV Certifier applying to become appointed for an LVV certification category additional to that for which they are already appointed, must:

- (a) have not less than two years' experience operating as an LVV Certifier; and
- (b) possess an appropriate level of knowledge and practical experience in vehicle modifications and construction (as appropriate) relevant to the LVV certification category(s) being applied for (see Notes 1 and 2 below); and
- (c) be considered necessary by NZTA for the provision of good customer service on the basis that there are insufficient LVV Certifiers already appointed and available with the LVV certification category(s) being applied for in the Applicant's geographical area (see Note 3 below); and
- (d) have met the key indicators which show that a consistently excellent standard of LVV certification performance has been achieved since the LVV Certifier's appointment (see Note 4 below).

Note 1	The determination as to whether an LVV Certifier possesses an 'appropriate level of knowledge and practical experience' in vehicle modifications will be determined by the LVV Certifier's performance history: • arising from the File Review System carried out on the LVV Certifier's LVV certifications; and • during any applications made by the LVV Certifier for Category Extensions relative to the category(s) for which the LVV Certifier is applying.
Note 2	'Category Extensions' referred to in Note 1 above, are detailed in <i>LVV ORS Chapter 8: LVV Certification Inspection Procedures</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
Note 3	Further information about how NZTA will consider an application for appointment in relation to geographical coverage is detailed in 'Appendix 1 – Legal Background to Geographical Coverage' at the back of this chapter.
Note 4	The 'key indicators' of a 'consistently excellent standard of LVV certification performance' are specified in 15.3.

15.3 Defining a consistently excellent standard

15.3(1) The key indicators of a consistently excellent standard of LVV certification performance, as referred to in 15.2(1)(d), are that the LVV Certifier:

- (a) has not had any disciplinary action applied by NZTA in the five-year period prior to the application; and
- (b) has not had any performance management processes applied by LVVTA in the 12-month period prior to the application (see Note 1 below); and
- (c) operates consistently within the 'green zone' of LVVTA's *LVV Certifier Error Report Summary* (see Notes 2 and 3 below).

Note 1	Performance management processes are detailed in <i>LVV ORS Chapter 13: LVV Complaints & Performance Management</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz
Note 2	The 'green zone' is the area within the <i>LVV Certifier Error Report Summary</i> that indicates an LVV Certifier is providing a consistently high standard of LVV certification performance, and is where all LVV Certifiers are expected to be positioned.
Note 3	The <i>LVV Certifier Error Report Summary</i> referred to in Note 1 above is detailed in <i>LVV ORS Chapter 11: LVV Error Recording & Reporting</i> , which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

15.4 Application process

15.4(1) An LVV Certifier applying to become appointed for additional LVV certification category(s) must:

- (a) in the first instance, contact LVVTA to enquire whether the criteria specified in 15.2(1) is likely to be met; and
- (b) if it is determined that this is likely, fill out and submit an 'LVV Certifier Application LVV01' (Application Form) as specified in the relevant parts of section 8 (see Notes 1 and 2 below).

Note 1 An *Application Form* (to gain an additional LVV certification category) will be provided to LVV Certifiers by LVVTA.

Note 2 LVVTA can provide advice and guidance to LVV Certifiers during the process of preparing and submitting their Application to NZTA.

15.5 Assessment process

- 15.5(1) In order to be satisfied the LVV Certifier applying to become appointed for the additional LVV certification category(s) meets the criteria specified in 15.2(1), NZTA and LVVTA may require, as considered necessary and on a case-by-case basis:
- (a) the implementation of any of the processes specified in this chapter, or elements or combinations thereof, relevant to the category(s) being applied for; or
 - (b) the undertaking of any tailored support, training, or mentoring relevant to the category(s) being applied for.
- 15.5(2) The assessment will take place at a time and place mutually agreed between LVVTA and the LVV Certifier (see Note 1 below).

Note 1 The assessment process may be carried out on a face-to-face basis, but in certain circumstances, where enough is known about the LVV Certifier's knowledge and practical experience relating to the LVV certification category being applied for, a physical assessment may not be required.

- 15.5(3) Any assessment processes specified in 15.5(1) which are implemented may be provided at no charge to the LVV Certifier, however all costs associated with attending any such assessment processes, such as travel and accommodation, are to be met by the LVV Certifier.

15.6 Appointment

- 15.6(1) At the completion of any assessment processes specified in 15.5(1) which are determined to be necessary, if an LVV Certifier satisfies LVVTA that there are no significant shortfalls in understanding and correctly applies all aspects of the additional LVV certification category(s), LVVTA will provide a written recommendation to NZTA that the LVV Certifier is ready to be appointed for the additional category(s).
- 15.6(2) If NZTA is satisfied that the LVV Certifier has met the criteria specified in 15.5(1), and has received a written recommendation in support of the LVV Certifier from LVVTA:
- (a) the same notification processes to the LVV Certifier and to LVVTA as specified in 13.1 and 13.2 will apply; and
 - (b) the same File Review system probationary processes specified in 13.3, relative to the additional LVV certification category(s), will apply.
- 15.6(3) If NZTA is not satisfied that the LVV Certifier has met the criteria specified in 15.5(1):
- (a) the same notification process to the LVV Certifier as specified in 14.1 will apply; and
 - (b) the same re-application conditions specified in 14.2 will apply.

Terms & Definitions for Chapter 5

Applicable requirements	means any technical or operational requirement referred to in the <i>LVV Code</i> which an LVV must comply with in order to be approved for LVV certification.
CCM	(NZ Car Construction Manual) means LVVTA's detailed technical standards, incorporated by reference under the <i>LVV Code</i> , which must be met to enable an LVV to comply with applicable requirements. The CCM is referred to by the corresponding <i>LVV Standard</i> .
Certify	is, as defined in the <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> , to verify that a vehicle complies with safety-related legal requirements prescribed by New Zealand land transport legislation.
Compliant	(also known as compliance) means a condition where evidence exists that an LVV complies with the applicable requirements specified in the <i>LVV Code</i> .
Electric vehicle	means a vehicle which has a form of motive power derived from electricity, rather than internal combustion.
Entry Certifier	means a person who inspects a vehicle for entry certification on behalf of NZTA.
Entry certification	means the inspection process which a vehicle is required to undergo before it can be registered for road use as part of the New Zealand vehicle fleet.
Final inspection	means the last inspection undertaken by an LVV Certifier during the LVV certification inspection process, where the LVV Certifier signs off a vehicle as being safe and compliant with applicable requirements.
Industry-expert level	means a level of knowledge and experience held by a person who is widely recognised as being of particularly high standing within their respective field, and who others in the same industry are likely to rely on for advice.
Inspection	means the vehicle inspection process specified in <i>section 2.4, 2.5, and 2.6</i> of the <i>LVV Code</i> , carried out by an LVV Certifier during the LVV certification of a low volume vehicle.
Interregional operation	means the practice of providing LVV certification services in areas outside of the geographical region for which the LVV Certifier is appointed.
LVV	(Low Volume Vehicle) means, in simple terms, vehicles which are modified or scratch-built in small numbers, and includes individually modified or scratch-built vehicles. The full definition of an LVV is contained in the <i>LVV Code</i> .
LVV Authority Card	(Low Volume Vehicle Authority Card) means an LVV certification document, issued under the delegated authority of LVVTA, specifying alternative safety related equipment required to be fitted to a vehicle for special purposes, as defined in <i>Annex 5</i> of the <i>LVV Code</i> .
LVV Base Forms	(Low Volume Vehicle Base Forms) means the set of <i>Forms</i> used by an LVV Certifier as part of their inspection of an LVV which are common to all LVV certifications.

LVV Certification	(Low Volume Vehicle Certification) means the process specified by the <i>LVV Code</i> , by which the design of an LVV is determined to comply with any applicable requirements, and, in recognition of which, an LVV EDP is affixed.
LVV Certification File	(Low Volume Vehicle Certification File) means the set of documents, including the <i>LVV Base Forms</i> , <i>LVV Inspection Form-sets</i> , supporting information, and photographic record, which an LVV Certifier is required to collate during an LVV certification inspection process, and submit to LVVTA upon completion.
LVV Certification Management Documents	(Low Volume Vehicle Certification Management Documents) means the collective of all documents relevant to the LVV certification system, including those documents housed within the <i>LVV Certification Manuals</i> , and external documents which may be used or referred to by LVVTA or an LVV Certifier.
LVV Certification Manuals	(Low Volume Vehicle Certification Manuals) means LVVTA's set of manuals which house all of LVVTA's legal, operational, and technical certification documents which are incorporated by reference under the <i>LVV Code</i> . The <i>LVV Certification Manuals</i> contain the <i>LVV Code</i> , the <i>LVV ORS</i> , <i>LVV Standards</i> , <i>LVV Base Forms</i> and <i>LVV Inspection Form-sets</i> , <i>Safety Alerts</i> , <i>Information Sheets</i> , <i>Newsletters</i> , and Reference Material.
LVV Certifier	(Low Volume Vehicle Certifier) means a person appointed by NZTA under the provisions of <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> , to carry out certification of modified and scratch-built LVVs, as specified by <i>Part 2</i> of the <i>LVV Code</i> .
LVV Certify	(Low Volume Vehicle Certify) means the same as LVV certification.
LVV Code	(Low Volume Vehicle Code or the Code) means an LVVTA document which is incorporated by reference into the <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> , and all applicable individual <i>Land Transport equipment rules</i> , that provides the legal framework to enable the LVV certification of modified and scratch-built LVVs in New Zealand.
LVV CPR	(Low Volume Vehicle Certifier Performance Report or LVV Certifier Performance Report) means the reporting document that LVVTA uses to report the individual and overall performance of the LVV Certifiers to NZTA each month.
LVV EDP	(Low Volume Vehicle Electronic Data Plate) is an RFID tag, in use from February 2021, fitted to an LVV upon completion of the LVV certification process, which when scanned by an NFC-capable device, displays details and photographs of the modifications and construction features on the LVV to which it is affixed.
LVV File Review System	(Low Volume Vehicle File Review System) means a comprehensive desk-top auditing process applied by LVVTA to a specified percentage of <i>LVV Certification Files</i> submitted by LVV Certifiers, upon completion of their LVV certifications, as an additional step in ensuring safety and compliance of LVVs.
LVV Information Sheets	(Low Volume Vehicle Information Sheets) means <i>Information Sheets</i> incorporated by reference under the <i>LVV Code</i> , which provide or support applicable requirements.
LVV Inspection Form-set	(Low Volume Vehicle Inspection Form-set or LVV Form-set) means the check-sheets used by an LVV Certifier to guide and record their inspection of an LVV, and confirm compliance with applicable requirements.
LVV Look-up	is LVVTA's online system used to enable the public to view the LVV certification information provided on an LVV EDP or LVV engraved certification plate.

LVV ORS	(Low Volume Vehicle Operating Requirements Schedule or ORS) means the document, incorporated by reference under the <i>LVV Code</i> , which provides LVVTA's operational processes and systems necessary to meet applicable requirements. The <i>LVV ORS</i> sets out the obligations and responsibilities of LVVTA, and the LVV Certifiers.
LVV Safety Alerts	(Low Volume Vehicle Safety Alerts or Safety Alerts) means LVVTA's publication system, incorporated by reference under the <i>LVV Code</i> , which is designed to draw attention to unsafe aftermarket automotive components, and which must be met to enable an LVV to comply with applicable requirements.
LVV Standards	(Low Volume Vehicle Standards) means LVVTA's technical standards, incorporated by reference under the <i>LVV Code</i> , that set out the legal requirements which vehicles that are modified and scratch-built vehicles in New Zealand must meet. Each <i>LVV Standard</i> refers to a corresponding <i>CCM chapter</i> or <i>MCM chapter</i> for detailed technical requirements.
LVV Supporting Documents	(Low Volume Vehicle Supporting Documents) means those documents listed in <i>Annex 4</i> of the <i>LVV Code</i> which comprise part of the applicable requirements, and support the application of the LVV certification system.
MCM	(NZ Motorcycle Construction Manual) means LVVTA's detailed technical standards, incorporated by reference under the <i>LVV Code</i> , which must be met to enable a low volume motorcycle to comply with applicable requirements. The <i>MCM</i> is referred to by the corresponding <i>LVV Standard</i> .
Modification	is defined in <i>Land Transport Rule: Vehicle Standards Compliance 2002</i>) to change a vehicle from its original state by altering, substituting, adding or removing any structure, system, component or equipment, but does not include repair. 'Modified' and 'modification' have corresponding meanings.
Modified Production (LVV)	means, in simple terms, a vehicle which, while modified, maintains a sufficient percentage of body or chassis from one primary mass-produced vehicle that it can still be considered to be that vehicle. The full legal definition of a Modified Production LVV is complex and currently under review, and will be incorporated within the <i>LVV Code</i> once revised.
Motor vehicle	is as defined in <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> .
NFC	(Near Field Communication) means a short-range wireless technology, typically requiring a distance of 40 mm or less to initiate a contact.
NoA	(Notice of Appointment) , means the contract which exists between an LVV Certifier and NZTA, that provides an LVV Certifier with the authorisation to carry out LVV certification on behalf of NZTA, and which outlines the terms, conditions, and obligations of the appointment.
NZTA	(New Zealand Transport Agency) is a Crown entity responsible for managing New Zealand's land transport system.
ONT	(Objective Noise Test) means a test carried out by an LVV Certifier to measure the noise level of a vehicle's exhaust system at a specific engine RPM.
PRS	(Performance Review System) is the quality management monitoring tool used by NZTA to measure the performance of all certifiers, including LVV Certifiers.

Registered	is as defined in the <i>Transport (Vehicle and Driver Registration and Licensing) Act 1986</i> , or <i>Part 17</i> of the <i>Land Transport Act 1998</i> .
RFID	(Radio Frequency Identification) is a technology which uses electromagnetic fields to automatically identify and track tags attached to objects. These tags link to electronically stored information, which can be accessed using RFID readers.
Right-hand drive	means that a vehicle's steering wheel and driving position is located to the right of the vehicle's longitudinal centreline.
Scratch-built (LVV)	means, in simple terms, an LVV which has been individually constructed from unrelated components, or a mass-produced vehicle which has been modified to such an extent that it can no longer be considered to be a modified mass-produced vehicle. The full legal definition of a scratch-built LVV is currently under review, and will be incorporated within the <i>LVV Code</i> once revised.
Trike	means, usually, a Class LE motor-tricycle (three-wheeled motor vehicle), as defined in <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> .

Appendix 1 – Legal Background to Geographical Coverage

A1-1 Introduction

The two primary deliberations in considering an application from a person who wishes to become an LVV Certifier are: (1) whether the Applicant has the appropriate background to perform well as an LVV Certifier; and (2) whether there is a need for an LVV Certifier, or another LVV Certifier, in the Applicant's area. Appendix 1 has been provided to set out some legal background to the situation of 'geographical coverage', as it applies in law for specialist vehicle certification.

A1-2 'Fit and proper' person

The NZ Transport Agency (NZTA) will consider the appointment of a person as an LVV Certifier by applying the criteria set out in paragraph 2.5(2) of the *Land Transport Rule: Vehicle Standards Compliance 2002* (the *Compliance Rule*). NZTA must first be satisfied that the Applicant is a fit and proper person to hold an appointment. Part of the 'fit and proper' criteria means that a person's ability to become an LVV Certifier may be affected as a result of the person having had previous criminal convictions.

A1-3 NZTA must consider those already appointed

NZTA will then consider a range of factors under paragraph 2.5(2)(b) of the *Compliance Rule* which include the Applicant's ability and competence, the Applicant's insurance arrangements, any conflicts of interest in relation to any vehicle-related business of the Applicant, monitoring and review arrangements, geographical coverage, quality assurance and performance management systems, and any other relevant factors.

Specifically, 2.5(2)(b)(v) of the *Compliance Rule* requires that "...in considering an application for appointment, the Director must give such weight as (he) considers appropriate, to the number of vehicle inspectors already appointed and available in the relevant geographical areas".

It is important to note that NZTA, in fact, must (rather than 'may') consider those LVV Certifiers already appointed and available in the relevant geographical area.

It is also important to note that NZTA must give such weight as it considers appropriate to these factors, which means that it may consider the factors in such order it determines appropriate, and give stronger emphasis to one or more factors than to others, under the circumstances of each application and situation.

A1-4 Reason geographical coverage is important

The 'geographical coverage' factor in paragraph 2.5(2)(b)(v) of the *Compliance Rule* must take into consideration the number of LVV Certifiers already appointed and available both in a particular geographical area and at different levels of experience.

While LVV Certifier categories 1A and 1B (for example) are the 'entry-level' categories, this work is effectively the 'bread and butter' work relied upon by the top-level 1D Certifiers. The introduction of more entry-level LVV Certifiers than are necessary for the provision of a good service to the motoring public reduces the LVV certification work available to each LVV Certifier, and because the LVV certification system is so diverse and complex, a reduction in work in turn increases safety risk by lessening opportunity for the LVV Certifiers to 'stay sharp' through carrying out LVV certification on a regular and repetitive basis.

The other risk associated with ‘over-population’ is the potential loss of LVV Certifiers with over thirty years of experience who become replaced by incoming LVV Certifiers with little or no experience. The system is then vulnerable because regions will have no top-level LVV Certifiers to provide an LVV certification service for higher-level modifications for the vehicle modification industry and motoring public, such as taxi-van conversions, scratch-built vehicles, vehicles to transport people with disabilities, and electric vehicle conversions.

A1-5 Consideration process

In applying the legal test, NZTA will consult with LVVTA as to the geographical need for, and suitability of, a candidate to carry out the category of LVV certification for which they are applying to become appointed, as well as any of the other factors which need to be considered if an appointment is to be made.

Prior to commencing the formal application process, a potential Applicant is encouraged to check with LVVTA to find out whether geographical coverage is likely to be a factor in an application, and what weight is likely to be given to it. Any indication that the LVVTA might give in this respect does not prevent the Applicant from proceeding with an application, but it may provide useful information before proceeding.

The geographical coverage situation is detailed further under the heading of ‘7.2 Application of Geographical Coverage for LVV Certification’ within ‘Appendix 7 - LVV Code and Related System Legal Reviews’ of the *Low Volume Vehicle Code*, which is available to the public electronically, free of charge, from the LVVTA website www.lvvta.org.nz

A1-6 Initial enquiry by the Applicant

In the first instance, a person who wishes to become appointed as an LVV Certifier should contact LVVTA to enquire as to whether an LVV Certifier, or additional LVV Certifier, is required for the relevant geographical area for which the Applicant intends to apply.

LVVTA, in consultation with NZTA where necessary, will consider the number of LVV Certifiers already appointed and available within the relevant geographical area, with a view to considering what weight is likely to be given to that factor in accordance with the requirements concerning ‘geographical coverage’ specified in paragraph 2.5(2)(b)(v) of the *Compliance Rule*, and either:

- if LVVTA considers that a need exists in the relevant geographical area for an LVV Certifier, or additional LVV Certifier, an initial discussion will be arranged between the Applicant and LVVTA prior to the Applicant making an application (see section 5 – ‘Preliminary Conversation with LVVTA’ in this chapter); or
- if LVVTA considers there are sufficient LVV Certifiers already appointed and available within the relevant geographical area, and that those LVV Certifiers already appointed and available are performing competently and are providing good service to the vehicle modification industry and motoring public, feedback will be provided to the Applicant indicating that:
 - while the person is entitled to make an application to NZTA at any time, significant weight is likely to be given to the ‘geographical coverage’ factor in the application; and
 - because there is a sufficiency in existing numbers of LVV Certifiers already appointed and available within the Applicant’s intended area of business, and those LVV Certifiers are providing a good service, it is likely that the application will be declined.

A1-7

LVVTA operational policy on geographical coverage

As a matter of operational policy, LVVTA ensures that LVV Certifiers are appointed and available in sufficient numbers so as to enable good levels of LVV certification service to the motoring public to be maintained, in relation to:

- each geographical area; and
- for each LVV certification category; and
- consideration toward future planning with respect to future generations of LVV Certifiers.

In order to assess whether sufficient LVV Certifiers are appointed and available as referred to in A1-7, 'Table 5.1 – Required LVV Certifier Numbers' below should be referred to as a guide to indicate the number and geographical spread of LVV Certifiers that are required in order to enable a good level of certification service to be provided to the vehicle modification industry and motoring public.

Table 5.1 - Required LVV Certifier Numbers

<i>Geographical area</i>		<i>Average annual # of LVV certifications</i>	<i>Number of LVV Certifiers required</i>
Northland including Whangarei		186	0.46
Greater Auckland region		1944	4.86
Waikato including Hamilton		547	1.37
Bay of Plenty & Central Districts, including Tauranga & Taupo		640	1.60
Taranaki including New Plymouth, & Wanganui		275	0.69
Hawkes Bay including Napier & Hastings, & Gisborne		83	0.21
South Manawatu including Palmerston North & Levin		864	2.16
Wellington & Wairarapa		281	0.70
Marlborough & Tasman, including Nelson & Blenheim		88	0.22
Canterbury & lower West Coast, including Christchurch & Timaru		899	2.25
Otago (excl. Central Otago), including Dunedin		267	0.67
Southland & Central Otago, including Invercargill		94	0.23
Note 1	The average annual number of LVV certifications has been established through analysis of historical LVV certification numbers over a three-year period from 2021 to 2023 inclusive. Data from this period was selected because the COVID period of 2020 created very atypical figures, and 2021 coincided with the introduction of the LVV Electronic Data Plates.		
Note 2	The number of LVV Certifiers required (for each geographical area) is based on a realistic assumption that over the course of a year, an LVV Certifier (who is operating as an LVV Certifier on a full-time basis) can carry out (on average) two LVV certifications per day, which, based on 200 working days per year, will limit an LVV Certifier working full-time to approximately 400 certifications per annum. It should be noted that LVV certification inspection numbers will vary from vehicle to vehicle. For example, an LVV Certifier might certify four series-production taxi vans one day (where the inspection process is of a repetitive nature), and the next day only one highly modified vehicle can be inspected during the course of the day because of the extent of the modifications and the inspection time involved. A complex scratch-built vehicle may take longer than one day.		

Appendix 2 – Sample LVV Certifier Notice of Appointment

Notice of appointment as a low volume vehicle specialist certifier

Your certifier appointment details

Under clause 2.2(1)(g) of the Land Transport Rule: Vehicle Standards Compliance 2002 (the Rule) **certifier's full name** (the certifier) is appointed by the Director of Land Transport (the Director) as a vehicle inspector and inspecting organisation (LVV certifier) for low volume vehicle specialist inspection and certification, for the term of appointment and subject to the requirements and conditions set out in this notice.

Your appointment starts on: **DD Month YYYY**

Your appointment ends on: **DD Month YYYY**

The Director may extend, suspend or revoke your appointment depending on your performance or other factors.

Vehicles you can inspect and certify

You may only inspect and certify vehicles categorised in the *Low Volume Vehicle Code* (LVV code) as:

- LV1A Modified Production - Limited
- LV1B Modified Production - Extended
- LV1C Modified Production - Structures
- LV1D Modified Production - Advanced and Scratch-built
- LVRH Modified Production - Right-hand Drive Conversions
- LVEX - Exhaust Noise and Gas Emissions
- LV2A Motorcycles - Modified Production
- LV2B Motorcycles - Advanced and Scratch-built
- LV2C Trikes - Modified Production and Scratch-built
- LV3A Disability Adaptation - Limited
- LV3B Disability Adaptation - Structures
- LV4 - Electric & Hybrid Vehicles
- LVAC - Authority Card.

Low volume vehicle (LVV) certifier terms and conditions

1. General

The terms and conditions in this notice of appointment are imposed under clause 2.3 of the Rule.

In this notice some words have special meanings:

Common terms	Meaning
LVV certifier	means a low volume vehicle certifier who, in legal terms, is appointed as both a vehicle inspector and an inspecting organisation.
The activities	means the activities a low volume vehicle specialist certifier performs to inspect and certify vehicles categorised in the LVV code.
The LVV code	means the <i>Low Volume Vehicle Code</i> as defined in Part 2 of the Rule and all documents included in it, like: • the <i>LVV ORS</i> • the <i>Low Volume Vehicle Standards (LVV standards)</i>. Collectively these documents form part of the <i>LVV Certification Manuals</i> .
The LVV ORS	means the <i>Low Volume Vehicle Operating Requirements Schedule</i> .

The LVVTA	means the Low Volume Vehicle Technical Association Incorporated.
The Rule	means the <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> .
We, us, the Director, NZTA	means the Director of Land Transport.
You, your, you're, the certifier	means you, the person appointed as the certifier in this notice.

2. Competence and diligence

You must perform all inspection and certification activities competently and diligently and in line with the conditions of your appointment and with the rule.

3. Compliance with documents

You must comply with all conditions, requirements and guidelines in:

- this notice of appointment
- the Land Transport Act 1998 (particularly section 4)
- the Rule
- the LVV Code
- other relevant legislation (for example, the Privacy Act 2020 and the Health and Safety at Work Act 2015)
- any documents we or the LVVTA issue.

4. Compliance with required activities

You must meet all requirements described in the LVV Code to:

- attend and participate in training
- participate in on-site visits
- comply with outcomes and directives from the LVVTA file reviews and complaint resolution processes.

5. Changes of circumstance and other notifications

You must tell us and the LVVTA in writing if:

- your circumstances change, for example:
 - you change your address or contact details
 - you can't meet the requirements or conditions of this notice
 - you're charged with a criminal offence or serious land-transport related offence
 - there's a significant legal claim against you that's related to how you perform the activities
 - you stop performing any of the activities
- any documents associated with the activities are lost or stolen
- you think any activities have been done incorrectly
- your insurance cover, required in this notice, stops.

6. Fitness and propriety and driver licence

You must continue to be a fit and proper person.

You must make sure any person who helps you perform the activities has the right qualifications and skills.

You must not inspect a vehicle if:

- you need to drive it as part of the inspection process, and
- you don't hold a current and valid driver licence for that class of vehicle.

7. Conflicts of interest and inappropriate financial influences

You must comply with guidance from us or the LVVTA about conflicts of interest and inappropriate financial interests.

8. Insurance

You must comply with the insurance terms and conditions set out at the end of this notice.

9. Keeping and providing records

You must comply with the LVVTA record keeping requirements and, if asked, send that information to us or the LVVTA.

10. Delegation

You may only delegate responsibilities listed in the LVV ORS and you must follow any LVVTA requirements that apply.

11. Fee collection and payment

You must pay the regulated fee for each LVV certification to the LVVTA. They'll pass on the regulatory fee portion to NZTA.

12. Director's powers to monitor, review, investigate and take enforcement action

We'll make sure you're meeting the rule requirements by:

- monitoring and reviewing you at any time
- investigating you if there's reason to believe you're not meeting the rule requirements
- taking enforcement action, including:
 - requiring you to correct your actions
 - suspending or revoking your appointment
 - telling you to re-inspect and, if appropriate, re-certify vehicles at your own cost.

Insurance terms and conditions

You must have insurance

- You must either:
 - have your own insurance that complies with the terms and conditions below, or
 - join and continue membership of the LVVTA group insurance scheme.
- If you get your own insurance, you can ask us to change the insurance terms and conditions. If we agree, we'll send you the updated terms and conditions.
- You must send us proof of your insurance if we ask for it.
- If you reapply to be a certifier you must give us proof of having appropriate insurance.
- You must tell us in writing if your insurance policy:
 - is cancelled, or
 - cover levels reduce below the levels we've set in this notice, or
 - excess levels increase above the levels we've set in this notice.

If you get your own insurance

- During your appointment you must have public liability and professional indemnity insurance that covers the activities described in this notice.
- If you stop performing the activities (for any reason), your professional indemnity insurance must cover you for a further 6 years. You can either:
 - continue to hold the policy for a further 6 years, or
 - include a 6 year run-off period in your policy.
- We've listed the minimum cover levels and maximum excess levels below. Depending on your business needs and risk, you may choose to:
 - increase your cover above the minimum cover level
 - lower your excess below the maximum excess level.
- You must review and update your insurance cover if your business needs change.

- You must not do anything that might prejudice or void your public liability or professional indemnity insurance policies.
 - Your insurance policies can be in your name, your business's name or your employer's name, if those policies cover your work activities and comply with the cover levels set in this notice.
 - The insurer providing your public liability and professional indemnity insurance must have:
 - a minimum A- Insurer Financial Strength Rating from S&P Global Ratings (previously known as Standard & Poor's), or
 - an equivalent rating from a credit rating agency, or
 - a rating exemption from the Reserve Bank of New Zealand.
 - Your public liability insurance cover must be \$1 million or more with an excess of \$12,000 or less.
 - Your professional indemnity insurance cover must be \$1 million or more with an excess of \$12,000 or less.
-